

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
FIRST SESSION

LEGISLATIVE BILL 635

FINAL READING

Introduced by Hansen, 16.

Read first time January 22, 2025

Committee: General Affairs

- 1 A BILL FOR AN ACT relating to the State Athletic Commissioner; to amend
- 2 sections 81-8,129, 81-8,130, 81-8,130.01, 81-8,132, 81-8,133,
- 3 81-8,133.01, 81-8,134, 81-8,135, 81-8,138, and 81-8,139, Reissue
- 4 Revised Statutes of Nebraska; to authorize the regulation of
- 5 professional bare-knuckle mixed martial arts, professional mixed
- 6 martial arts on ice, professional muay thai, amateur muay thai, and
- 7 amateur kickboxing; to harmonize provisions; and to repeal the
- 8 original sections.
- 9 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-8,129, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 81-8,129 The State Athletic Commissioner shall have sole direction,
4 management, control, and jurisdiction over all professional mixed martial
5 arts, professional bare-knuckle mixed martial arts, professional mixed
6 martial arts on ice, professional muay thai, professional boxing,
7 professional kickboxing, professional bare-knuckle boxing, and
8 professional sparring matches and exhibitions and all amateur mixed
9 martial arts, amateur muay thai, and amateur kickboxing matches and
10 exhibitions to be held within the state, except such as are conducted by
11 universities, colleges, high schools, the military, and recognized
12 amateur associations for contestants under sixteen years of age. No
13 professional boxers, professional mixed martial arts contestants,
14 professional bare-knuckle mixed martial arts contestants, professional
15 mixed martial arts on ice contestants, professional muay thai
16 contestants, professional kickboxers, professional bare-knuckle boxers,
17 ~~or~~ amateur mixed martial arts contestants, amateur muay thai contestants,
18 or amateur kickboxing contestants who have attained the age of sixteen,
19 shall participate in a match or exhibition for a prize or purse, or at
20 which an admission fee is charged, either directly or indirectly, in the
21 form of dues or otherwise, in this state except by a club, association,
22 organization, or person licensed by the commissioner, as provided in
23 section 81-8,130, and in pursuance of a license granted by the
24 commissioner for such match or exhibition under section 81-8,130.01.

25 **Sec. 2.** Section 81-8,130, Reissue Revised Statutes of Nebraska, is
26 amended to read:

27 81-8,130 The State Athletic Commissioner may issue an annual license
28 for conducting amateur mixed martial arts, amateur muay thai, or amateur
29 kickboxing matches or exhibitions to any club, association, or
30 organization. Each application for a license shall be accompanied by a
31 fee set by the commissioner in rule and regulation. Such fee shall be not

1 less than twenty-five dollars and not more than one hundred dollars.

2 **Sec. 3.** Section 81-8,130.01, Reissue Revised Statutes of Nebraska,
3 is amended to read:

4 81-8,130.01 Licenses and permits may be issued to professional mixed
5 martial arts, professional bare-knuckle mixed martial arts, professional
6 mixed martial arts on ice, professional muay thai, professional boxing,
7 professional kickboxing, or professional bare-knuckle boxing promoters,
8 whether persons, clubs, or associations, for the sole purpose of
9 conducting professional matches under such rules and regulations as the
10 State Athletic Commissioner shall adopt. Each application for such
11 license shall be accompanied by a fee set by the commissioner in rule and
12 regulation. Such fee shall be not less than one hundred dollars and not
13 more than three hundred dollars. If the promoter is an individual, the
14 application shall include his or her social security number.

15 **Sec. 4.** Section 81-8,132, Reissue Revised Statutes of Nebraska, is
16 amended to read:

17 81-8,132 No license shall be granted unless the licensee has
18 executed a bond in the sum of not less than one thousand dollars in the
19 case of amateur mixed martial arts, amateur muay thai, or amateur
20 kickboxing nor less than five thousand dollars in the case of
21 professional mixed martial arts, professional bare-knuckle mixed martial
22 arts, professional mixed martial arts on ice, professional muay thai,
23 professional boxing, professional kickboxing, or professional bare-
24 knuckle boxing. The license shall be approved by the State Athletic
25 Commissioner, conditioned on the faithful compliance by the licensee with
26 the provisions of sections 81-8,129 to 81-8,142.01, the rules and
27 regulations of the commissioner, and such other laws of the state as may
28 be applicable to anything done by the licensee in pursuance of the
29 license.

30 **Sec. 5.** Section 81-8,133, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 81-8,133 The State Athletic Commissioner is authorized to grant
2 licenses to competent referees, upon an application and the payment of a
3 fee set by the commissioner in rule and regulation. Such fee shall be not
4 less than ten dollars and not more than forty dollars per annum. The
5 commissioner may revoke any license so granted for such cause as may be
6 deemed sufficient. At every professional boxing, professional mixed
7 martial arts, professional bare-knuckle mixed martial arts, professional
8 mixed martial arts on ice, professional muay thai, professional
9 kickboxing, professional bare-knuckle boxing, amateur mixed martial arts,
10 amateur muay thai, amateur kickboxing, or professional sparring match or
11 exhibition, there shall be in attendance a duly licensed referee, who
12 shall direct and control the match. The referee shall stop the match
13 whenever he or she deems it advisable, (1) because of the physical
14 condition of the contestants or one of them, (2) when one of the
15 contestants is clearly outclassed by his or her opponent, or (3) for any
16 other sufficient reason. The referee shall, at the termination of every
17 professional boxing, professional mixed martial arts, professional bare-
18 knuckle mixed martial arts, professional mixed martial arts on ice,
19 professional muay thai, professional kickboxing, professional bare-
20 knuckle boxing, amateur mixed martial arts, amateur muay thai, amateur
21 kickboxing, or professional sparring match or exhibition, indicate a
22 winner. The fees of the referee and other licensed officials may be fixed
23 by the commissioner and shall be paid by the licensed organization.

24 **Sec. 6.** Section 81-8,133.01, Reissue Revised Statutes of Nebraska,
25 is amended to read:

26 81-8,133.01 The State Athletic Commissioner may grant licenses to
27 qualified physicians, managers, matchmakers, and professional mixed
28 martial arts, professional bare-knuckle mixed martial arts, professional
29 mixed martial arts on ice, professional muay thai, professional boxing,
30 professional kickboxing, professional bare-knuckle boxing, or
31 professional sparring match or exhibition judges upon an application and

1 payment of an annual fee set by the commissioner in rule and regulation.
2 Such fee for matchmakers shall be not less than ten dollars and not more
3 than one hundred dollars. Such fee for physicians, managers, and
4 professional mixed martial arts, professional bare-knuckle mixed martial
5 arts, professional mixed martial arts on ice, professional muay thai,
6 professional boxing, professional kickboxing, professional bare-knuckle
7 boxing, or professional sparring match or exhibition judges shall be not
8 less than ten dollars and not more than twenty dollars. The commissioner
9 may also grant licenses to qualified timekeepers, contestants, and
10 seconds upon an application and payment of an annual fee set by the
11 commissioner in rule and regulation. Such fee shall be not less than ten
12 dollars and not more than twenty dollars. The application shall include
13 the applicant's social security number. No person shall serve as
14 physician, manager, matchmaker, or judge at any professional mixed
15 martial arts, professional bare-knuckle mixed martial arts, professional
16 mixed martial arts on ice, professional muay thai, professional boxing,
17 professional kickboxing, professional bare-knuckle boxing, or
18 professional sparring match or exhibition who is not licensed as such. No
19 person shall serve as timekeeper or contestant at any professional mixed
20 martial arts, professional bare-knuckle mixed martial arts, professional
21 mixed martial arts on ice, professional muay thai, professional boxing,
22 professional kickboxing, or professional bare-knuckle boxing match who is
23 not licensed as such. The commissioner shall have summary authority to
24 stop any match at which any person is serving in violation of the
25 provisions of this section. Any license granted under the provisions of
26 this section may be revoked for cause.

27 **Sec. 7.** Section 81-8,134, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 81-8,134 (1) Any professional boxing match, professional mixed
30 martial arts match, professional bare-knuckle mixed martial arts match,
31 professional mixed martial arts on ice match, professional muay thai

1 match, professional kickboxing match, professional bare-knuckle boxing
2 match, ~~or~~ amateur mixed martial arts match, amateur muay thai match, or
3 amateur kickboxing match conducted in this state which is labeled or
4 promoted as a championship match shall have regional or national
5 significance and the approval of a nationally recognized professional
6 boxing, mixed martial arts, bare-knuckle mixed martial arts, mixed
7 martial arts on ice, muay thai, kickboxing, or bare-knuckle boxing
8 association.

9 (2) Professional boxing, professional kickboxing, professional bare-
10 knuckle boxing, or professional sparring matches or exhibitions shall not
11 exceed ten rounds in length, except in a championship match, which shall
12 not exceed fifteen rounds. No round shall be longer than three minutes.
13 At least one minute shall intervene between rounds. Except for
14 professional bare-knuckle mixed martial arts, professional kickboxing, or
15 professional bare-knuckle boxing matches, the contestants shall wear
16 during the contest gloves weighing at least eight ounces each.

17 (3) Professional mixed martial arts, professional muay thai, and
18 professional bare-knuckle mixed martial arts matches or exhibitions shall
19 not exceed three rounds in length, except in a championship match, which
20 shall not exceed five rounds in length. No round shall be longer than
21 five minutes. At least one minute shall intervene between rounds.

22 (4) No professional boxing contestant, professional mixed martial
23 arts contestant, professional bare-knuckle mixed martial arts contestant,
24 professional mixed martial arts on ice contestant, professional muay thai
25 contestant, professional kickboxing contestant, professional bare-knuckle
26 boxing contestant, ~~or~~ amateur mixed martial arts contestant, amateur muay
27 thai contestant, or amateur kickboxing contestant shall be allowed to
28 participate or take part in any contest in this state unless a duly
29 licensed physician shall certify in writing that such contestant has
30 taken a physical examination the day of the contest and is physically fit
31 to engage in the proposed contest.

1 **Sec. 8.** Section 81-8,135, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 81-8,135 Every licensee conducting or holding any professional mixed
4 martial arts, professional bare-knuckle mixed martial arts, professional
5 mixed martial arts on ice, professional muay thai, amateur mixed martial
6 arts, amateur muay thai, amateur kickboxing, professional boxing,
7 professional kickboxing, or professional bare-knuckle boxing match shall
8 furnish to the State Athletic Commissioner a written report showing the
9 articles of agreement between the contestants, the number of tickets sold
10 for each contest, the amount of the gross receipts thereof, the gross
11 receipts from sale of any television rights, and such other matters as
12 the commissioner shall prescribe. Within such time the licensee shall pay
13 to the commissioner a tax of five percent of the total gross receipts of
14 any professional mixed martial arts, professional bare-knuckle mixed
15 martial arts, professional mixed martial arts on ice, professional muay
16 thai, professional boxing, professional kickboxing, or professional bare-
17 knuckle boxing match or exhibition, exclusive of state and federal taxes,
18 except the gross receipts from sale of television rights, and five
19 percent of such rights, and five percent of the total gross receipts of
20 any amateur mixed martial arts, amateur muay thai, or amateur kickboxing
21 match or exhibition, exclusive of state and federal taxes, except that if
22 such match or exhibition is conducted as an incidental feature in any
23 event or entertainment of a different character, such portion of the
24 total receipts shall be paid to the state as the commissioner may
25 determine, or as may be fixed by rule adopted under section 81-8,139.

26 **Sec. 9.** Section 81-8,138, Reissue Revised Statutes of Nebraska, is
27 amended to read:

28 81-8,138 No contestant in any match or exhibition shall be paid for
29 services until the same are rendered, and should it be determined by the
30 State Athletic Commissioner that a contestant did not give an honest
31 exhibition of his or her skill, he or she shall not be paid. Any

1 contestant who shall participate in any sham or fake professional boxing,
2 professional mixed martial arts, professional bare-knuckle mixed martial
3 arts, professional mixed martial arts on ice, professional muay thai,
4 professional kickboxing, professional bare-knuckle boxing, ~~or~~ amateur
5 mixed martial arts, amateur muay thai, or amateur kickboxing match or
6 exhibition shall be disqualified and shall not thereafter be permitted to
7 contend in any match or exhibition in this state, and any contestant who
8 shall participate in any sham or fake professional boxing, professional
9 mixed martial arts, professional bare-knuckle mixed martial arts,
10 professional mixed martial arts on ice, professional muay thai,
11 professional kickboxing, professional bare-knuckle boxing, ~~or~~ amateur
12 mixed martial arts, amateur muay thai, or amateur kickboxing match or
13 exhibition shall be guilty of a violation of sections 81-8,128 to
14 81-8,142.01.

15 **Sec. 10.** Section 81-8,139, Reissue Revised Statutes of Nebraska, is
16 amended to read:

17 81-8,139 (1) Except as provided in subsection (2) of this section,
18 the State Athletic Commissioner shall adopt and promulgate such rules and
19 regulations for the administration and enforcement of sections 81-8,128
20 to 81-8,142.01 as he or she may deem necessary. Such rules and
21 regulations shall include, but not be limited to, the establishment of
22 written criteria for the granting and revoking of licenses, the setting
23 of license fees, and the qualification requirements for those to be
24 licensed as referees, physicians, managers, matchmakers, and professional
25 boxing, professional mixed martial arts, professional bare-knuckle mixed
26 martial arts, professional mixed martial arts on ice, professional muay
27 thai, professional kickboxing, professional bare-knuckle boxing, or
28 professional sparring match or exhibition judges. He or she shall have
29 the power and may control and limit the number of professional mixed
30 martial arts, professional bare-knuckle mixed martial arts, professional
31 mixed martial arts on ice, professional muay thai, amateur mixed martial

1 arts, amateur muay thai, amateur kickboxing, professional boxing,
2 professional kickboxing, professional bare-knuckle boxing, or
3 professional sparring matches or exhibitions given, or to be held, each
4 year, or within one week, in any city or town, or by any organization. He
5 or she may fine any licensee, except amateur contestants, an amount not
6 to exceed one thousand dollars and may suspend for a period, not to
7 exceed one year, any licensee's right to participate in or conduct any
8 match or exhibition for unsportsmanlike conduct while engaged in or
9 arising directly from any match or exhibition, failure to compete in good
10 faith, engaging in any sham match or exhibition, or the use of
11 threatening and abusive language toward officials, other contestants, or
12 spectators.

13 (2) The State Athletic Commissioner may adopt and promulgate rules
14 and regulations to identify a list of substances banned for use by any
15 amateur or professional contestant and may require any contestant to
16 submit to a test for banned substances as a condition for allowing the
17 contestant's participation in a match or exhibition.

18 (3) The State Athletic Commissioner may suspend an amateur or
19 professional contestant from competition for a period not to exceed one
20 year and may fine a professional contestant an amount not to exceed one
21 thousand five hundred dollars or forty percent of the prize or purse,
22 whichever is greater, for a first offense of failing a test for a banned
23 substance on the list developed pursuant to subsection (2) of this
24 section or for refusing to submit to such a test. He or she may suspend
25 an amateur or professional contestant from competition for a period not
26 to exceed three years and may fine a professional contestant an amount
27 not to exceed three thousand dollars or seventy percent of the prize or
28 purse, whichever is greater, for any second such offense. He or she may
29 suspend an amateur or professional contestant from competition for life
30 and may fine a professional contestant an amount not to exceed five
31 thousand dollars or one hundred percent of the prize or purse, whichever

1 is greater, for any third or subsequent such offense. For purposes of
2 determining if an offense under this subsection is a first, second,
3 third, or subsequent offense, failing a test for banned substances and
4 refusing to submit to such a test shall be considered the same offense.

5 (4) Before levying an administrative fine pursuant to this section,
6 the State Athletic Commissioner shall set the matter for hearing.
7 Proceedings to levy an administrative fine shall be contested cases
8 prosecuted and appealable pursuant to the Administrative Procedure Act.
9 At least ten days before the hearing, the State Athletic Commissioner
10 shall serve notice of the time, date, and place of the hearing upon the
11 licensee or other violator by personal or certified mail service.

12 (5) The State Athletic Commissioner shall remit any administrative
13 fines collected under this section to the State Treasurer for
14 distribution in accordance with Article VII, section 5, of the
15 Constitution of Nebraska.

16 **Sec. 11.** Original sections 81-8,129, 81-8,130, 81-8,130.01,
17 81-8,132, 81-8,133, 81-8,133.01, 81-8,134, 81-8,135, 81-8,138, and
18 81-8,139, Reissue Revised Statutes of Nebraska, are repealed.